

23STCV09114 23STCV09114

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Case Number: 23STCV09114 Hearing Date: June 30, 2026 Dept: 400

MOTION TO ENFORCE SETTLEMENT

The Court tenders the following

tentative decision in the matter Benjamin Moreno v. Pacific Reproductive Medical Center Inc., et al., Los Angeles County Superior Court case number 23STCV09114, set for hearing on June 30, 2026. Pacific Reproductive Medical Center, Inc. and Rifaat Salem (collectively, Defendants) move for an order enforcing a PAGA settlement agreement between them and Benjamin Moreno (Plaintiff) pursuant to Code of Civil Procedure section 664.6. The motion is denied.

A.

Procedural

History

Plaintiff filed the present action against Defendants on April 24, 2023. On April 11, 2025, the parties signed a settlement agreement. The Court denied Plaintiff's motion for approval of the settlement agreement on July 17, 2025. Plaintiff did not cooperate with Defendants in attempting to reach an alternative settlement between then and the present hearing. (Davila Decl. ¶¶ 6–7.) Defendants filed the present motion to enforce the PAGA agreement on June 3, 2026.

B.

Legal

Standard

"If parties to pending

litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before

the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6; see *Mesa RHF Partners, L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 917.)

C.

Discussion

Defendants

argue that although the Court refused to approve the PAGA settlement, the parties still entered into a binding, enforceable agreement. Specifically, Defendants contend that the settlement agreement required the parties to negotiate a final agreement that would be approved by the Court, while Plaintiff maintains that the agreement is not binding because the Court did not approve it. All parties had signed the agreement, along with the PAGA addendum, by May 8, 2025. The Court denied Plaintiff's motion to approve the agreement on July 17, 2025.

The agreement provides that after entry

of judgment, the Court would retain jurisdiction over the parties to enforce the agreement. However, judgment was never entered in this matter, as the Court declined to enforce the agreement. Defendants point to section 6.3 of the agreement, which provided that Plaintiff and Defendants would expeditiously work together to modify the agreement should the Court not grant approval. But section 664.6 does not grant this Court authority to compel parties to reach certain settlement terms. (*Weddington Products, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 797.) This Court's role is limited to enforcing binding settlement agreements. The Court did not approve the relevant agreement here, and Defendants have not set forth a basis for further intervention. Accordingly, Defendants' motion is denied.

D.

Conclusion

The Court denies the motion.